

THIRD ADDENDUM TO LEASE AGREEMENT

This Third Addendum To Lease Agreement (this "**Third Addendum**") is entered into as of the dates set forth below, but effective for all purposes as of April 1, 2016 by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "**Lessor**"); and

TYE HEBERT INVESTMENTS, L.L.C., d/b/a HERSHEY'S ICE CREAM, a Louisiana limited liability company, whose mailing address is 137 Teljean Road, Lafayette, Louisiana 70503, and whose address during the term of this Lease shall be 107 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "**Lessee**").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of April 1, 2007 (the "**Lease Agreement**"); and

WHEREAS, the Lessor and the Lessee entered into a First Addendum To Lease Agreement dated as of January 29, 2010 providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2013 ("**First Renewal Term**"); and

WHEREAS, the Lessor and the Lessee entered into a First Addendum To Lease Agreement dated as of January 29, 2010, providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2013 ("**First Renewal Term**"); and

WHEREAS, the Lessor and the Lessee entered into a Second Addendum to Lease Agreement dated as of March 8, 2013, providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2016 (the "**Second Renewal Term**"); and

WHEREAS, the Second Renewal Term ends March 31, 2016, and the Lessor and Lessee wish to amend the Lease Agreement to provide for an extension of the Lease Agreement for an additional thirty-six (36) month period and to address certain other issues.

NOW THEREFORE, in consideration of the foregoing, the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. The Lessor and the Lessee hereby agree that the Lessee, subject to the terms and conditions set forth in this Addendum, is renewing and extending the Lease Agreement

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for thirty-six (36) months beginning April 1, 2016 and expiring March 31, 2019 (the "**Third Renewal Term**").

2. The Base Rent and Additional Rent payable during the Third Renewal Term in accordance with Section 31.01 of the Lease Agreement shall be as follows:
 - a) Base Rent during the Renewal Term shall \$12.50 per square foot per year, payable monthly ("**Base Rent**").
 - b) With respect to Additional Rent, the amount of Common Area Maintenance Charges for the Renewal Term is hereby fixed at \$1.35 per square foot of the Premises per annum, payable monthly and the amount of Taxes and Insurance Charges for the Renewal Term is hereby fixed at \$1.15 per square foot of the Premises per annum, payable monthly.

Beginning on first day of the Third Renewal Term and extending through the last day of the Third Renewal Term, the Total Monthly Rental Payment shall be calculated as follows:

Base Rent	\$1,815.00
Common Area Maintenance Charges	196.09
Tax and Insurance Charge	167.38
Total Monthly Rental Payment	<u>\$2,178.47</u>

3. Provided that the Lessee is not in default in the performance of this Agreement, Lessee shall have two (2) options to extend the Lease Agreement, each for an additional three (3) year term (the "**Fourth Renewal Term**" and "**Fifth Renewal Term**," respectively). All of the terms and conditions of the Lease Agreement, as amended by the First, Second and Third Addenda thereto, shall apply during the Fourth Renewal Term and Fifth Renewal Term, except that the monthly rental amount shall be negotiated between the Lessor and the Lessee. The option to renew shall be exercised by written notice given to Lessor by Lessee not less than sixty (60) days prior to the expiration of the Third Renewal Term, or Fourth Renewal Term, as the case may be. If notice is not given in the manner provided herein and within the time specified, the options granted herein shall terminate.
4. The Lessor and the Lessee hereby agree that the terms and conditions of this Third Addendum shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants on On The Boulevard Shopping Center. The Lessee acknowledges that the foregoing covenant of confidentiality constitutes a portion of the consideration delivered to the Lessor to induce the Lessor to execute and deliver this Third Addendum and any breach thereof shall constitute an event of default by the Lessee under the Lease Agreement.

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5. The remainder of the terms of the Lease Agreement not specifically amended by the First Addendum, the Second Addendum, or this Third Addendum shall remain and be in full force and effect.
6. This Third Addendum to Lease Agreement may be executed in two or more counterparts each of which, when executed and delivered as prescribed, shall constitute an original.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

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IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year hereinbelow.

WITNESSES:

Linda J. Landry
Printed Name: Linda G Landry

Rachael Lalande
Printed Name: Rachael Lalande

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By:

Edward E. Abdalla, IV

Manager

Dated: 2/26/16

HA R B
Notary Public

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IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year hereinbelow.

WITNESSES:

Emily Wilkerson
Printed Name: Emily Wilkerson

Stephanie M. Hanks
Printed Name: STEPHANIE M. HANKS

LESSEE:

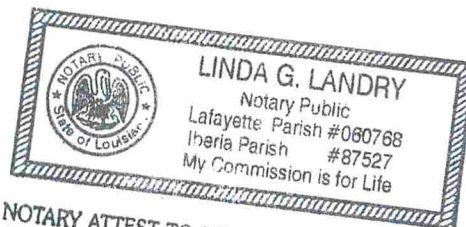
TYE HEBERT INVESTMENTS, L.L.C.,
a Louisiana limited liability company

By: Tye J. Hebert

Tye J. Hebert, Manager

Dated: 3/11/16

Linda M. Landry
Notary Public



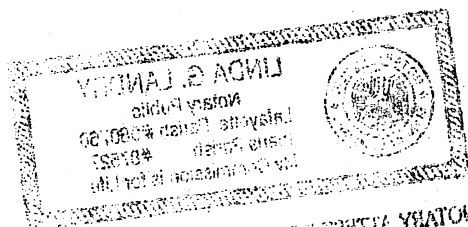
NOTARY ATTEST TO SIGNATURES ONLY
AND NOT THE CONTENTS OF THE DOCUMENT

IN WITNESS WHEREOF, I have hereunto set my hand and the seal of my office, at the City of New York, this 1st day of January, 1998.

Notary Public
Linda G. Landry
State of New York
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